

SUPREME COURT OF THE STATE OF NEW YORK
NEW YORK COUNTY

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KHALID BALDWIN,
Plaintiff,

v.

THE CITY OF NEW YORK,
NEW YORK CITY POLICE OFFICER
DANIEL DECARIO, Tax # ***706, 113th Precinct,
NEW YORK CITY POLICE OFFICER
KOMOROSKI, Tax # ***027, 113th Precinct,
NEW YORK CITY POLICE OFFICER
PISTONE, Tax # ***962, 113th Precinct,
Defendant(s).

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SUMMONS

Index No.: _____

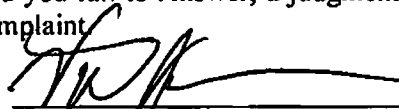
Date Index No. Purchased: _____

To the Person(s) named as Defendants Above:

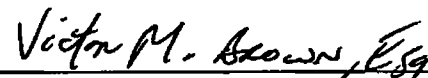
PLEASE TAKE NOTICE THAT YOU ARE HEREBY SUMMONED to answer the Complaint of the Plaintiff(s) herein and serve a copy of your answer on the Plaintiff(s) at the address indicated below within 20 days after the Service of this Summons (not counting the day of service itself), or within 30 days after service is complete if the summons is not delivered personally to you within the State of New York.

YOU ARE HEREBY NOTIFIED THAT should you fail to Answer, a judgment will be entered against you by default for the relief demanded in the Complaint.

Dated: _____



Signature



Print name: Victor M. Brown, Esq.

Address and Phone Number
11 Park Place, Suite 1100
New York, NY 10007
(212) 227-7373

Defendants' Address: 1 Centre Street, New York, NY 10038

Venue: Plaintiff(s) designate(s) New York County as the place of trial. The basis of the Designation is *(check one)*
____ Plaintiff(s) reside in _____ County.
☒ Defendant(s) reside in _____ County
☒ Other *(describe)* _____ Office Location of Counsel

SUPREME COURT OF THE STATE OF NEW YORK
NEW YORK COUNTY

Index No.

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KHALID BALDWIN,
Plaintiff,

-against-

**VERIFIED
COMPLAINT**

THE CITY OF NEW YORK,
NEW YORK CITY POLICE OFFICER
DANIEL DECARIO, Tax # ***706,
113th Precinct,
NEW YORK CITY POLICE OFFICER
KOMOROSKI, Tax # ***027,
113th Precinct,
NEW YORK CITY POLICE OFFICER
PISTONE, Tax # ***962
113th Precinct,

Defendants.

-----X

Plaintiff, KHALID BALDWIN, by his Attorney, VICTOR M. BROWN, ESQ., as and for a
verified complaint alleges respectfully and states as follows:

FOR A FIRST CAUSE OF ACTION

NATURE OF ACTION

1. This is a New York State Constitutional Civil Rights, Human Rights, False Arrest, Malicious Prosecution, Intentional Assault, Negligence, Negligent Supervision and Respondeat Superior action for compensatory and punitive damages proximately resulting from Plaintiff having been falsely arrested, criminally prosecuted, and having excessive force used against him causing injuries, by the above captioned Defendant Officers on January 2, 2018 in the vicinity of 137-32 169th Street, Queens, New York.

NOTICE OF CLAIM

2. That on December 31, 2018, Plaintiff KHALID BALDWIN, prior to the bringing of the within action, and within ninety days after the date of the alleged incident, filed a Notice of Claim which was duly served upon the Defendant(s).
3. That the Defendant(s) and its Comptroller have failed, neglected to pay, settle, compromise or adjust the claim of the Plaintiff.
4. That this action has been commenced within one year and ninety days after the cause of action of Plaintiff accrued, with statutory COVID -19 Pandemic exceptions for, to and of any Statutes of Limitations enacted by the Governor of the State of New York pursuant to Executive Orders commencing in March 2020 and continuing thereafter.

THE PARTIES

5. That at all times mentioned, the Plaintiff, KHALID BALDWIN, is a United States citizen, who was, and still is a resident of the State of New York, Queens County.
6. That at all times mentioned, Defendant CITY OF NEW YORK, is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a Police Department, which acts as its agent in the area of Law Enforcement and for which it is ultimately responsible. Defendant CITY OF NEW YORK assumes the risks incidental to the maintenance of a Police Department, and the employment of Police Officers, as said risk attaches to the public consumers of the services provided by THE NEW YORK CITY POLICE DEPARTMENT.
7. That upon information and belief, at all times relevant, Defendant CITY OF NEW YORK, employed Police Officers, Corrections Officers and medical and fire personnel and others hereinafter mentioned in this complaint.
8. THE NEW YORK CITY POLICE DEPARTMENT, while not a named Defendant, is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to

carry out all police functions for Defendant CITY OF NEW YORK and assumes the risk incidental to the maintenance of a police force and the employment of Police Officers

9. Defendant(s), NEW YORK CITY POLICE OFFICERS DECARIO, Tax # ***706, NEW YORK CITY POLICE OFFICER KOMOROSKI, Tax # ***027, and NEW YORK CITY POLICE OFFICER PISTONE, Tax #***962, upon information and belief, all of the 113th Precinct of THE NEW YORK CITY POLICE DEPARTMENT, were and are, at all times relevant, Officers, employees and agents of Defendant CITY OF NEW YORK. Defendant New York City Police Officers DECARIO, KOMOROSKI and PISTONE are sued individually and in their official capacities. At all times relevant, Defendant Officers DECARIO, KOMOROSKI and PISTONE were acting under color of State Law and in the scope of their duties and functions as agents, servant and employees of THE NEW YORK CITY POLICE DEPARTMENT and Defendant CITY OF NEW YORK and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. Defendant New York City Police Officers DECARIO, KOMOROSKI and PISTONE received training in making arrests, the utilization of force in effecting an arrest, and legal training from Defendant CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT and were acting for and on behalf of THE NEW YORK CITY POLICE DEPARTMENT and Defendant CITY OF NEW YORK at all times relevant herein with the power and authority vested in them as police officers, agents and employees of THE NEW YORK CITY POLICE DEPARTMENT and Defendant CITY OF NEW YORK and incidental to their lawful duties as officers, employees and agents of THE NEW YORK CITY POLICE DEPARTMENT and Defendant CITY OF NEW YORK.
10. That on January 2, 2018, at approximately 1:15 a.m. to 1:30 a.m., inside of 137-32 169th Street, Queens County New York, Plaintiff KHALID BALDWIN was inside his home when named Defendant NEW YORK CITY POLICE OFFICERS DECARIO, KOMOROSKI and PISTONE of the 113th Precinct, entered his home without his permission, authority, or the possession of a search or arrest warrant. Plaintiff KHALID BALDWIN asked the Defendant Officers why they were

present in his home. The named Defendant Officers refused to tell the Plaintiff why they were present, only informing the Plaintiff that he was being arrested and would have to go to the precinct. The Plaintiff told the named Defendant Officers that he was suffering from a physical disability as a result of being previously injured at work, whereupon the Plaintiff was suddenly rushed by the three named Defendant Officers, who forcibly and violently pushed the Plaintiff to the floor and physically restrained by the Plaintiff. The named Defendant Officers then handcuffed the Plaintiff and put the Plaintiff in ankle cuffs. The named Defendant Officers then picked up the Plaintiff by holding the wrist and ankle restraints. The Defendant Officers then began to carry the Plaintiff out of his bedroom, and down a flight of stairs, dropping Plaintiff off the side of the stairs onto the floor below, causing the Plaintiff to land on his left shoulder and side, which had been injured previously, causing new injuries to Plaintiff's shoulders, back, ankles and wrists and extreme pain, causing the Plaintiff to cry out in pain as a result of being thrown over the staircase railing onto the floor below. The Plaintiff, who heard the Defendant Officer near the top of his body state in sum and substance, "this fuckers heavy" immediately before the Defendant Officers tossed the Plaintiff over the railing, was transported to the local precinct where the Plaintiff was held in custody of THE NEW YORK CITY POLICE DEPARTMENT and the named Defendant Officers for approximately four hours, during which Plaintiff repeatedly requested medical attention, which requests were ignored by the named Defendant Officers. The Plaintiff was eventually transported to a local area hospital by other members of THE NEW YORK CITY POLICE DEPARTMENT and members of the NEW YORK CITY FIRE DEPARTMENT. As a result of the aforementioned conduct by the named Defendant Officers the Plaintiff was required to get additional medical care for the injuries caused by the Defendant Officer's actions.

11. That as a result of the false arrest and subsequent prosecution of the Plaintiff, the Plaintiff was unlawfully detained in custody for approximately twenty four hours, forced to retain counsel, incurring legal expenses to defend himself against the false Felony charges levied upon him by the named Defendant Officers, which included alleged violations of New York Penal Law Sections

120.05 (3) (Assault in the Second Degree), 120.00(1) Assault in the Third Degree, 195.05 (Obstruction of Governmental Administration in the Second Degree), 205.30 (Resisting Arrest), 260.10(1) Endangering the Welfare of a Child, and 240.26(1) Harassment, all of which were dismissed by the QUEEN COUNTY DISTRICT ATTORNEY'S OFFICE on October 23, 2018.

12. The amount of damages sought in this action exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION

13. The Plaintiff repeats and realleges each and every allegation contained in paragraphs One (1) through Twelve (12) with the same force and effect as if set forth here at length.
14. That during the effectuation of the arrest by named Defendants, NEW YORK CITY POLICE OFFICERS DANIEL DECARIO, Tax Number ***706, NEW YORK CITY POLICE OFFICER KOMOROSKI, Tax Number ***027, and NEW YORK CITY POLICE OFFICER PISTONE Tax number ***962 utilized excessive force against the Plaintiff, causing Plaintiff to suffer a injuries to both shoulders, back and ankles, and causing Plaintiff to suffer physical impairment, extreme physical pain and discomfort, and requiring medical treatment at a local area hospital and continued medical treatment thereafter.
15. That named Defendant CITY OF NEW YORK, is responsible for the training and supervision of the named Defendant Officers, resulting in the aforementioned and hereinafter mentioned harm to Plaintiff.
16. The amount of damages sought in this action exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION

17. The Plaintiff repeats and realleges each and every allegation contained in paragraphs One (1) through Sixteen (16) with the same force and effect as if set forth here at length.
18. That at the time and place aforesaid, named Defendant NEW YORK CITY POLICE OFFICERS DANIEL DECARIO, KOMOROSKI, and PISTONE willfully, wantonly, maliciously and

intentionally assaulted the Plaintiff by throwing him over a railing and off stairs, causing the Plaintiff to suffer the injuries previously alleged.

19. At the time of such assault, Defendant NEW YORK CITY POLICE OFFICERS DECARIO, KOMOROSKI and PISONE were employees and or servants of said Defendant CITY OF NEW YORK, and were acting as agents of Defendant CITY OF NEW YORK, in doing the acts complained of herein and within the scope of their authority.
20. Solely by reason of the foregoing negligent training and supervision of the named Defendant Officers by Defendant CITY OF NEW YORK, the Plaintiff became sick, sore, lame and disabled, and suffered and continues to suffer great physical and mental pain requiring medical treatment, and further impairing and aggravating the Plaintiff's pre-existing injuries.
21. The amount of damages sought in this action exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION

22. The Plaintiff repeats and realleges each and every allegation contained in Paragraphs One (1) through Twenty One (21) with the same force and effect as if set forth here at length.
23. That by reason of the foregoing negligent hiring, training, supervision of Defendant CITY OF NEW YORK of the named Defendant Officers, resulting in Plaintiff's false arrest and malicious prosecution, Plaintiff's civil rights, pursuant to United States and New York State Constitutions, were violated by the named Defendant Officers and Defendant CITY OF NEW YORK, causing the Plaintiff to suffer great mental distress, and injuring his reputation and character.
24. The amount of damages sought in this action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A FIFTH CAUSE OF ACTION

25. The Plaintiff repeats and realleges each and every allegation contained in Paragraphs One (1) through Twenty Four (24) with the same force and effect as if set forth herein.
26. That on January 2, 2018 the actions of Defendant CITY OF NEW YORK, by negligently hiring, training, screening, supervising and /or instructing named Defendants, NEW YORK CITY POLICE OFFICERS DICARIO, KOMOROSKI and PISTONE, resulted in the unlawful search, detention, arrest, injury and unlawful and false prosecution of the Plaintiff, resulting in the aforementioned harm to the Plaintiff.
27. The amount of damages sought in this action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A SIXTH CAUSE OF ACTION

28. The Plaintiff repeats and realleges each and every allegation contained in Paragraphs One (1) through Twenty Seven (27) with the same force and effect as if set forth herein.
29. That on January 2, 2018, the Defendant CITY OF NEW YORK, through the doctrine of Respondeat Superior, is liable for the actions of Defendants, NEW YORK CITY POLICE OFFICERS DICARIO, KOMOROSKI and PISTONE, which resulted in the unlawful search, detention, arrest, injury and unlawful and false prosecution of the Plaintiff, resulting in the aforementioned harm to the Plaintiff.
30. The amount of damages sought in this action exceeds the jurisdictional limit of all lower courts which would otherwise have jurisdiction.

WHEREFORE, Plaintiff demands the following relief, jointly and severably, against all Defendants:

1. Compensatory and Punitive Damages for Plaintiff in the amount of FIVE MILLION DOLLARS.
2. Punitive Damages against named Defendants NEW YORK CITY POLICE OFFICERS DICARIO, KOMOROSKI and PISTONE, of the 113th Precinct.
3. A Court Order that the Plaintiff is entitled to costs of the instant action, and attorney's fees.
4. Such other and further relief as the Court may deem necessary and appropriate, including declaratory relief.



VICTOR M. BROWN, ESQ.
11 Park Place, Suite 1100
New York, NY 10007
(212) 227-7373
Attorney for Plaintiff

Dated:
December 31, 2020

ATTORNEY VERIFICATION

VICTOR M. BROWN, ESQ., an attorney duly admitted to practice law before the Courts of the State of New York, and not a party to this action, affirms the following under penalty of perjury:

That he is the attorney for the Plaintiff in the above-entitled action, with offices located at 11 Park Place, Suite 1100, New York, NY 10007. That he has read the forgoing SUMMONS and COMPLAINT and knows the contents thereof. That the same is true to his knowledge, except for matters stated to be upon information and belief, and as to those matters which he believes to be true.

That the reason this Verification is made by the Deponent rather than the Plaintiff is because the Plaintiff is not at this time within the County of New York, which is the county where this Deponent has his office. Deponent further states that the grounds for his belief as to all the matters within the Verified Complaint, not stated to be upon knowledge, are based upon information supplied by the Plaintiff. The undersigned affirms that the foregoing statements are true under the penalties of perjury.

Affirmed,


VICTOR M. BROWN, ESQ.

Dated:
December 31, 2020

SUPREME COURT
STATE OF NEW YORK, COUNTY OF NEW YORK

Index No.

Year

KHALID BALDWIN,
 Plaintiff,
 -against-

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 NEW YORK CITY POLICE OFFICER
 KOMOROSKI, Tax # ***027, 113th Precinct,
 NEW YORK CITY POLICE OFFICER PISTONE, Tax # *** 962

VICTOR M. BROWN, ESQ.
 11 Park Place, Suite 1100
 New York, NY 10007
 Attorney(s) for Plaintiff (212) 227-7373
 Office and Post Office Address, Telephone

To The City of New York
 1 Centre Street
 New York, NY 10038
 Index #161398/2020 BALDWIN, KHALID.
 Documents Pay At Court E-File
 \$210.00
 Cashier: CHRISTOPHER REGISTER # 8
 Attorney(s) for Plaintiff
 New York County Clerk's Office
 Fax # 900084 12/31/2020 2:26p

Signature (Rule 130-1.1-a)

Print name beneath

Service of a copy of the within is hereby admitted.

Dated:

PLEASE TAKE NOTICE:☐ **NOTICE OF ENTRY**

that the within is a (certified) true copy of a
 duly entered in the office of the clerk of the within named court on

☐ **NOTICE OF SETTLEMENT**

that an order
 will be presented for settlement to the HON.
 within named Court, at
 on at M.
 Dated,

of which the within is a true copy
 one of the judges of the

11 Yours, etc.